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Paper : **ADVANCED JURISPRUDENCE**

Module : **20th Century Syntheses of Positivism and Natural Law**

JOHN MITCHELL FINNIS (1940-Present)



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JOHN MITCHELL FINNIS

Description of Module	
Subject Name	Law
Paper Name	Advanced Jurisprudence
Module Name/Title	John Mitchell Finnis
Module Id	Module 11
Pre-requisites	Background of naturalist and positivist thinking of law would help.
Objectives	Purpose of this module is to: 1. Provide modern interpretation of natural law theory; 2. Understand interface between modern natural law and positivism and will be introduced to several aspects of natural law.
Keywords	Moral law, Basic goods, Practical reasonableness



Introduction

John Mitchell Finnis (born 28 July 1940), a prominent living legal philosopher, who is presently a Professor of Jurisprudence at Oxford. He has successfully managed to revivify the discussion on natural law with his own new theory of natural law. His *Natural Law and Natural Rights*, first published in 1980, provides an important contemporary re-statement of natural law. It is a remarkable book. Finnis offers a robust exposition and defence of natural law-but it differs significantly from the way in which natural law is often understood today.¹ The skeptic thinking of modern thinkers against an absolute idea of justice and their established belief in the progress of mankind resulted in the rejection of the older notions of natural law as a law which is immutable, eternal and universal.

In its modern incarnation, natural law became 'an evolutionary ideal, and thus as a

directive force in the development of positive law'². As a consequence, modern natural theories could be seen as part of the never ending search for ideas of justice. Finnis analysis starts with a defense of naturalist jurisprudence and analysing the natural law element in positive law and its relationship with natural law theories. He strongly argued that the positivists' negation to natural law is baseless on the grounds that what positivists see as realities to be avowed are now attested by natural law, and what they portray as illusions to be insisted are not piece of natural law.



¹ Jeremy Shearmur, Natural Law without Metaphysics: The Case of John Finnis, 38 Clev. St.L. Rev. 123 (1990) available at <http://engagedscholarship.csuohio.edu/clevstlrev/vol38/iss1/9>

² W. Friedmann. Legal Theory (Third Indian Reprint 2003), 95



Finnis's new natural law theory is a type of moral theory. A moral theory of natural law states that all human beings have the capacity to understand basic moral obligations. It presupposes the ability of everyone to understand the basic aspects of morality regardless of their race, creed, color or culture. Another important assumption of the theory relates to applicability of the basic requirements of morality to everyone, no matter what their race, creed or color or culture is³.

According to Finnis, 'natural law' is the set of principles of practical reasonableness in ordering human life and human community. It is the requirement of practical reasonableness which in combination with the principle of 'basic goods' represents the structure of a 'natural law' analysis. Finnis grounds the moral rational strength of law in its purposive contribution to the continuance and fulfillment of a complete community. The tests of practical reasonableness in combination with the basic goods are designed to formulate 'a set of moral standards' which have to apply in same sense to everyone. On this understanding a natural law theory seeks to help all people understand what they morally ought or ought not to



do. Natural law theory advanced by Professor Finnis makes certain assumptions about what all human beings need to live their lives well. What natural law theory does is that, it offers a way for making decisions about how to go about living one's own life.

Finnis propounded 7 basic goods for human beings. These are

- 1 Life**
- 2 Knowledge**

³ B.C.Nirmal, Natural Law, Human Rights and Justice Some Reflections on Finnis's Natural Law Theory Available at http://www.bhu.ac.in/lawfaculty/blj2006-072008-09/BLJ_2006/4_BC_NIRMAL_NATURAL%20LAW.doc.



- 3 Play
- 4 Aesthetic experience
- 5 Sociability (friendship)
- 6 Practical reasonableness
- 7 'Religion'

Finnis thinks that these seven goods are universal- they apply to all humans at all times. To flourish as human beings we need all of these basic goods.

Life means the drive for self---preservation; it includes every aspect of life which puts a human being in good shape for self---determination; it includes bodily health, freedom from pain; also the transmission of life by procreation.

Knowledge means it is desirable for its own sake – it's a good to be well-informed instead of being ignorant.

Play means recreation, enjoyment, fun; engaging in a performance for no other reason than the performance itself

Aesthetic experience = an appreciation of beauty in art or nature;

Sociability (friendship) = peace and harmony amongst men at its minimum, in its strongest form it is the flowering of full friendship. Acting in the interests of one's friends or for the sake of a friend

Practical reasonableness = using one's intelligence to solve problems of deciding what to do, how to live, and shaping one's character

Religion = our concern about an order of things that transcends or individual interests (not necessarily a 'religion' per se)

The second-to -last one on the list is "practical reasonableness". Finnis explains more about that. He says that there are 9 basic requirements of practical reasonableness:

- a. The good of "practical reasonableness" structures the pursuit of goods generally. It shapes





- our participation in the other goods. It helps us to choose what to do, what projects to commit our time to.
- b. A coherent plan of life.
 - c. No arbitrary preference amongst values.
 - d. No arbitrary preference amongst persons.
 - e. Equilibrium between Detachment and Commitment
 - f. The relevance of consequences: actions should be reasonably efficient.
 - g. Respect for every basic value in every act.
 - h. The requirements of the common good – one should act to advance the interests of the community
 - i. Following one's conscience – we shouldn't go against our inner conscience

The 7 basic goods + the 9 requirements of practical reasonableness = Finnis's idea of the universal and immutable "principles of natural law". His theory, he says, accords with the basic ideas of natural law put forward by Aquinas. He says that these 7 basic goods are not derived from anything; they are all self-evident, understood by all, and they are all equally fundamental. They are incommensurable meaning thereby one cannot measure one against another. Their supposed incommensurability leads Finnis to state that people should pursue all the goods and should not ignore any one of them. This, however, does not preclude an individual to give emphasis to one good over another, but none of these goods should be excluded.

According to Finnis all seven basic human goods are equally fundamental because none can be analytically reduced to being merely an aspect of the other or being merely instrumental in the pursuit of any of the others. It is because of their nature and





intrinsic value that they are capable of being referred to as the most important at different points in time. He said that one's reason for choosing is reasons that properly relate to one's temperament, upbringing, capacities, and opportunities, not to differences of rank of intrinsic value between the basic goods'. These basic goods are not 'morally good' or 'moral values', but objective goods, the things that make the life Worthwhile, qualities which render activities and forms of life desirable. On this understanding they may be understood as a set of conditions which enable the members of a community to attain for themselves reasonable objectives and make people's personal plans and projects of life a possibility.

Practical Reasonableness

Practical reasonableness occupies highest place in Finnis's theory as it is not only one of the basic forms of human flourishing, a basic human good but also shapes one's participation in other basic goods and serves as the 'engine' for how we assess, and pursue the other basic human goods. According to Finnis the **first requirement** of practical reasonableness is to formulate a rational plan of life. Finnis does not want that we must have the perfect life with the perfect balance to participate in all the basic goods. In other words, he does not want each of us to be the ideal college applicant with all the right extra-curricular activities. All that first requirement of practical reasonableness insists upon is that we should remain open to the value of all the basic goods regardless of what the focus of our's national plan of life is.

Second requirement of practicable reasonableness is coherent plan of life. One must choose a coherent plan of life on the basis of one's capacities, circumstances, and even one's tastes. But it would be unreasonable if it either gives too much value to instrumental goods like wealth, opportunity, reputation or pleasure or is based on some devaluation of a basic human good⁴.

Finnis explains the criteria of capacities, circumstance, and tastes with the help of the example of a scholar who may have little taste for friendship, and may be completely committed to the search for knowledge. According to Finnis it would be unreasonable for him to deny that

⁴ Natural Law Theories, Stanford Encyclopedia of Philosophy. Available at <http://plato.stanford.edu/entries/natural-law-theories/>



friendship is a good in itself. Having no taste for friendship is one thing, but it is 'another thing, and stupid or arbitrary, to think or speak or act as if these were not real forms of good'

Third requirement is *no arbitrary preference amongst values*.

By assigning an equal value to each Basic Good, Finnis makes it objectively unreasonable to neglect any basic good. For example, it is unreasonable for a scholar who is single-mindedly focused on his commitment to knowledge 'to objectively deny that friendship is good in itself. While Finnis acknowledges that it may not be possible to embrace some of basic goods as wholesomely as others, one should leave themselves open to all.

Fourth requirement is no arbitrary preference amongst persons. In accordance with the Golden Rule of morality, articulated in the Abrahamic religious tradition, this principle centres on empathy. In short: '*do to others as you would have them do to you*'.

The basic goods are capable of being pursued and enjoyed by any human being and they are equally good when enjoyed by some other person as when enjoyed by myself. My well being is the first claim on my interest and I must concern myself with the realization of the objective goods but at the same time must not discount another's pursuit as not truly good. Thus the essence of the third requirement is that one should not have obsessive concern with another's survival, knowledge, creativity, or pursuit of any of the other basic goods.⁵

Drawing on the Kantian rule of universality, this principle declares that one should treat people always as ends in themselves. Yet the principle 'remains a pungent critique of selfishness, hypocrisy and double-standards'.

Fifth requirement is equilibrium between Detachment and Commitment.

The corresponding principles of Detachment and Commitment will be discussed together given their mutual subject matter. Detachment prohibits fatalism or obsession with specific projects, ensuring life is not drained of meaning if one's objective eludes them. Commitment prescribes that one engages in projects and pursues them beyond hardship⁶. One should expand their

⁵ Alex E. Wallin, John Finnis's Natural Law Theory and a Critique of the Incommensurable Nature of Basic Goods, 35 Campbell L. Rev. 59(2012)

⁶ See *Supra* note 3



horizons in seeking out creative ways to pursue their enterprises lest we needlessly waste opportunities for fulfilment. To do so is to live on the level of practical principle, or what Aquinas cherished as *volunta simplex*.

Turning to the **sixth requirement** it relates to the limited relevance of consequences: efficiency within reason. This principle speaks to the need for efficiency in pursuit of definite goals. Finnis rejects utilitarian reasoning as 'senseless and unworkable' because the 'basic forms of human good are incommensurable' and, thus, any calculus that tries to calculate them is irrational. Notwithstanding its limitations, the so-called 'market driven cost-benefit analysis' can be implemented, but its conclusions are not determinative. Ultimately, the efficiency of a given action will not justify a departure from Kant's 'categorical imperative', the rule that is informed by deontological considerations

The **seventh requirement** of practical reasonableness is that of respect for every basic value in every act. The 'do no evil that good may come' principle declares that one should not act in a way that of itself damages a basic good. Because the basic goods are open-ended this is a guiding ideal rather than a realizable ideal'. Finnis holds that in every act one must respect all basic goods. The only reason for doing an act contrary to this rule is that the good consequences of the act outweigh the 'damage' done through the act itself. To illustrate the point in a situation in which sacrificing the life of one person is not justified.

So is the case with the deliberate walking away from family obligations as it directly damages the basic good of sociability. To the contrary, if a scholar works on a Sunday to meet an important deadline, he is not guilty of a violation of the seventh requirement; damage caused to the family life which is the basic good of sociability is not the result of a direct decision to harm his family.

There is no doubt that it indirectly damages the basic good of sociability, but it also enhances the good of knowledge.

The **eighth requirement** of practical reasonableness is that of favoring the common good of one's communities. According to Finnis 'the common good is not the utilitarian's 'greatest net good' but rather it is the 'ensemble of conditions which would enable each to pursue his own objective'. This includes the good of living in a community where the dignity and rights of all



are honoured in the exercise of public authority. Finnis posits that the common good is the source of most of our concrete moral responsibilities, obligations and duties. It assumes that participating in the common good is to realize what would enhance the participation in goods of both one's neighbour and of himself.

The **next (ninth) and the final requirement** is that 'one should not do what one judges or thinks or 'feels' - all - in all should not be done'. This principle endeavours to achieve a harmony between judgment and choice, and flows from the fact that PR is not simply a mechanism for producing correct judgments, but an aspect of personal full-being, to be respected in every act. This principle acknowledges that 'even following the conscience, as we are morally bound to do, we can go wrong'. Conscientious judgment may nevertheless be erroneous'. Hence, acting in accordance with conscience renders an action conscionable, but not necessarily moral. Thus, the principle respects the dignity of the mistaken conscience.

While Finnis has successfully constructed a theory of natural law which does not suffer from the so-called naturalistic fallacy of deriving 'ought from is', it has been criticized by more traditional Thomistic philosophers who insist that the dictates of the natural law are to be derived from the metaphysical study of human values⁷. He has developed his own theory of natural law out of an account of basic goods and requirements of practical reasonableness which he claims to be self-evident in order to make this theory immune from the charge of the naturalistic fallacy and not from a metaphysical account of human nature.

Criticism

Critics argue that genuine ethical conclusions of the kind Finnis claims to have reached could only be secured by determining what is truly good for human beings on the basis of a metaphysical account of human nature. We have seen that Finnis claims his list of basic goods to be exhaustive. But sceptics take an issue with Finnis on this count and argues that there could be essential features of human flourishing other than those listed by him and further basic goods finding a place in his list are not all independent and irreducible⁸. Thus it is plausible to argue that 'play' is only an instrumental good in so far as it serves either aesthetic experience or

⁷ See http://wps.pearsoned.co.uk/ema_uk_he_riley_legphi_1mlc/231/59347/15192916.cw/-/15192927/index.html

⁸ See *Supra* note 3



sociability. Again, a skeptic may argue that 'life' is only a good if an individual has most of the typical facilities. In a similar vein, one might also claim that 'religion' is not a good because even asking questions about the meaning of life is of no value.

Other points about his theory

He says that unjust laws are not simply nullities. But because they go against the common good, they lose their direct moral authority to bind. So in other words, an unjust law is still a law. He says that in some situations we must obey an unjust law and even comply with an unjust law to further a common good. So, an unjust law might sometimes have to be complied with – it will depend on the circumstances. We cannot automatically assume that an unjust law is no law at all and need not be obeyed. Therefore any disobedient act that tends to weaken the legal system as a whole may be unjustified. Surprisingly, he thinks that sometimes a law may have to be obeyed, even if it seems immoral, because disobeying it might weaken the whole system. He uses some interesting examples to show that natural law is accepted, even by positivists. For example, the Nuremberg trials. Nazi war criminals were prosecuted for crimes such as “crimes against humanity” which were not crimes at the time they were committed. This, he says is an example of natural law at work. He says the tribunal applied “higher law” that exists at all times, in all places, regardless of the positive law.

INTERESTING FACTS

'Natural law' is the set of principles of practical reasonableness in ordering human life and human community

Finnis analysis starts with a defence of naturalist jurisprudence and analysing the natural law element in positive law

Finnis was a friend of Aung San Suu Kyi, also an Oxford graduate; and, in 1989, Finnis nominated her for the Nobel Peace Prize

Political commentator Andrew Sullivan writes that Finnis has articulated "an intelligible and subtle account of homosexuality" based on the new natural law, a less biologically-based version of natural law theory



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